

Group, Inc. v. Apple Inc. (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute and are objected to by a motion to tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Costs here are sought via declaration. Though Plaintiff did not file a memorandum of costs, Plaintiff verifies the costs sought under penalty of perjury. (Bullock Decl., ¶ 22, Exh. E; Bullock Supp. Decl., ¶ 4-6, Exh. A.) Receipts as evidence of costs is provided. (*Ibid.*) The items sought consists primarily of filing and service fees. The court finds the costs are reasonable and allowable. Costs are awarded in the amount of \$643.10.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/14/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Reed v. California Highway Patrol**
Superior Court Case No. 25CECG04900

Hearing Date: August 18, 2026 (Dept. 503)

Motion: Defendant's Demurrer to the Complaint

Tentative Ruling:

To sustain defendant California Highway Patrol's demurrer to the Complaint, without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).) The prevailing party is directed to submit to this court, within seven days of service of the minute order, a proposed judgment dismissing the action as to the demurring defendant.

Explanation:

Government Code section 815 provides that "[e]xcept as otherwise provided by statute...[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." In other words, "all government tort liability must be based on statute." (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107 [emphasis added]; Gov. Code, § 810, et seq.) "[I]n the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable." (*Id.* at p. 1108 [emphasis in original].)

Defendant State of California, by and through the California Highway Patrol ("Defendant") demurs on the basis that the sole cause of action plead in Plaintiff's complaint is barred by the Government Claims Act. Plaintiff's Complaint contains a single cause of action for general negligence against Defendant. Government Code section 815 bars common law tort liability for public entities. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899.) Thus, Plaintiff's Complaint fails to state a cause of action against Defendant. An opposition was not filed in response. As such, the demurrer is sustained, without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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